सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F. No.-S/3-MISC-PRO-516/2013 ACC (I) Part 7 **Date: 25.05.2022**

MINUTES OF THE
PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 27.04.2022

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 27.04.2022 at 03:00 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri Ranjit Kumar, Commissioner (Export & General)	Customs, ACC, Mumbai
Shri M. Rammohan Rao, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Vinay Kumar Arya, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Amit Sharma, Joint Commissioner (General)	Customs, ACC, Mumbai
Ms. Mamta Saini, Jt. Commissioner (Import)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Shri Nitish Pathode, Deputy Commissioner, EDI & Import Shed	Customs, ACC, Mumbai
Shri Harish D. Hinduja, Asstt. Commissioner (PRO, Import)	Customs, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev, Shri Rahul V Bhojani, Shri Dushyant Mulani, Shri Sorab	BCBA
Mr. R G Meena	PQ
Shri Jayesh S Parab	MACCIA
Sh. Bala Ayer	ACAAI
Shri Murthy, Sh. Ashok, Sh. Mayur, Sh. Nasir	MIAL
Shri Nimesh Desai	WISA
Shri Mahesh Kamble	Air India
Shri Rakesh Burman	WCCB
Shri Sanjay Patankar	BAR CC
Shri Harish Zade	Lufthansa Cargo
Shri Ajay Naik	BAR CC
Shri Newton Fernandes	All Nippon Airlines

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 29.12.2021

1. Delay in re-imbursement of TDS amount from Air India.

BCBA submitted that AIR INDIA is delaying the re-imbursement of TDS amount since past 2 years. i.e. 2016-17 & 2017-18. BCBA requested to instruct AIR INDIA Authorities not to delay the re-imbursement amount to members.

Mr. Errol D'Souza, Air India had informed that they have noted the point and this point has already been brought to the notice of their Finance Team. Commissioner (G) directed Air India to check it up and give a commitment date to the trade. Air India requested for some time. Mr. Errol D'Souza, Air India informed that they would provide the contact details of their finance team in Delhi who can be contacted by the trade for faster progress in this regard.

In previous meeting, there was no one present on behalf of Air India, therefore, point would be taken up in next meeting. Commissioner directed to convey the same to Air India.

Mr. Kamlesh, AIR India, submitted that they have already escalated this issue to their finance team in Delhi Headquarters and they are already in the process of crediting the TDS amount directly to the account of trade body. Commissioner (I) asked Mr. Kamlesh to inform the finance head of their office to arrange a meeting with BCBA and solve this issue as soon as possible since this issue is pending for so long. Mr. Kamlesh informed that in the mean time, he would share the contact details along with email address so that grievances could be solved quickly. Commissioner (I) further requested Commissioner (G) to take necessary steps to ensure compliance of duties which Air India supposed to do as a Custodian.

(Point Open)
(Action By: Air India)

2. First time registration of SVB related cases:

BCBA submitted that with Govt. focus on Make in India, there are considerable foreign companies who are investing in India for carrying out their business operations. For clearance of their consignments which involves related party transaction (SVB), the file needs to be sent to SVB Dept. for registration. BCBA submitted that this is taking considerable time at present in carrying out procedural requirement, which was not being insisted earlier. BCBA requested that since import of consignment by Air is always a time bound requirement and hence as per the earlier procedure, whenever first such consignment arrives which requires SVB registration, the file work process may kindly be completed within 2 working days and clearance of import consignment kindly be allowed. We humbly suggest that there is no requirement of insisting of NIDB data in such cases. BCBA informed the members that matter is getting delayed due to NIDB data for similar imports and requested not to insist the same. Commissioner (I) informed that NIDB data access has to be with all appraising officers as well as ACs/DCs posted in groups. Commissioner (I) further suggested BCBA to meet ADC (I) and try to find the solution as far as NIDB data is concerned.

Mr. Vinay Arya, ADC(I) submitted that there is a board circular no. 05/2016 regarding procedure to be followed in SVB related cases. He submitted that as per the circular, importer needs to file the BE in atleast 15 day's advance so that investigation could be completed in mean time and if required, then only matter to be forwarded to SVB cell. He further suggested BCBA to inform all the importers to file BE in advance.

Mr. Harish Zade, Lufthansa Cargo, submitted that in sea cargo, there is possibility of advance filing of BE but in air cargo, they usually gets documents one or 2 days before and in such case, it's not practically possible to file BE in advance. BCBA also affirmed to the same.

Commissioner (I) directed BCBA to submit the proposal and directed ADC(PRO) and Mr. Vinay Arya, ADC to come out with some relaxations after examination of the proposal, if possible.

(Point Open)
Action By: BCBA and ADC's (I)

3. The custodian AIASL (AIR INDIA) is not issuing the payment receipt duly signed / digitally signed like other custodian i.e. MIAL.

In previous meeting, there was no one present on behalf of Air India and, therefore, point would be taken up in next meeting. Commissioner (I) directed ADC (I) to convey the same point and seek reply from Air India for next meeting.

Mr. Errol D'Souza, AIR India submitted that in current software being used by Air India staff, this facility is not there but soon they would be upgrading their system and then this facility would be included in that software.

(Point Closed)

B. Fresh Agenda Points:

Sponsored by BCBA-

4. **Delay in message exchange between Custodian and Customs**
BCBA submitted that Exports are suffering considerably due to breakdown in CARR messages between Custodian and Customs regularly. In the said regards, BCBA suggested the following:

BCBA submitted that in depth study be carried to resolve the issue of CARR message either with Custodian or Customs and in event of the breakdown, backup mechanism be kindly worked out to process export consignments. BCBA further requested that Custodians should take in advance the "Change of Password" from DG System or it should be AUTO POPULATED as the same is required to be done on fixed interval, It has been noticed in the past in several instances where 1 whole day is lapsed just to retrieve the password, which is required by the Custodian for CARR Message Exchange with ICEGATE and custodian to provide waiver of demurrage charges suo-motto whenever there is breakdown.

Mr. Nasir, MIAL submitted that their IT manager, Mr. Satish is not present today and they would get back to this point as soon as he comes back. Mr. Nasir further submitted that they would do the needful as per the request of BCBA.

(Point Open)
Action By: MIAL

5. **Levy of Special Handling Charges:**

BCBA submitted that they convey their sincere thanks to Mr. Mohamed Nasir, Manager Operations, Import Shed for clarifying that special handling charges would only be levied to project cargo and not to normal cargo. BCBA requested MIAL to convey to all the Forwarders / Airlines, since wrong impression was being generated among trade that for timely segregation of cargo, special handling charges were being levied by MIAL. Hence wherever importers are facing such situation of levy of special handling charges (Rs.12/- per kilogram) to normal import cargo, the same should be reversed by MIAL immediately.

Mr. Nasir, MIAL submitted that they don't charge special handling fees unless and until they get request from the importer in case of dangerous,

odd package etc. Kind of goods. Mr. Nasir further submitted that they would be having a separate meeting in this regard with BCBA soon.

(Point Closed)

6. Delay in taking delivery of Import consignments at the gate pass counter by MIAL / Adani directly affecting TRS Records:

BCBA submitted that trade is facing considerable delay at the gate pass counter since past 2 weeks and they have been given to understand that the delay is due to the new system which has been introduced. BCBA submitted that as done in past, gate pass issuance should be immediate without delay.

Mr. Ketan Desai, BCBA submitted that currently, gate pass system of MIAL is working fine and they don't have any issue with it.

(Point Closed)

7. Payment of Custodian Charges through various modes of payment mandatorily from PD Account of Custom Brokers:

Cheque facility for BCBA members at ACC Mumbai is in operation since past 45 years. BCBA request to decentralize the mode of payment of the custodian charges, suggest that the payment to custodian must be available via various modes, for example via online payment from CB/IMPORTERS/EXPORTERS through various modes i.e. Cheque, NEFT, RTGS and PD Account. For ease of doing business such facilities are required to be open for the trade. The TRS record can be improved if such facilities are granted to the trade.

Mr. Nasir, MIAL submitted that they would examine the issue and it's possibility of implementation and inform BCBA according.

(Point Open)
Action By: MIAL

8. Extremely poor working condition in Air India Import shed leading to huge delay and damage to import cargo:

There is almost nil development from the AIATSL. This is creating the opportunity of taking advantage in various respect which is finally increasing the cost with delay in clearance of the consignments. There is a shortage of loaders, forklift, staff etc. with poor amenities , further the rainy season had been a nightmares for the trade , BCBA need the proper services from AIATSL before the rainy season. BCBA submitted that have taken up this issue with Air India and Ministry of Civil Aviation vide our letter No BCBA/KS/406/2017 dt 19.7.2017, BCBA/SH/553/2018 dt 06.09.2018, BCBA/SH/674/2018 dt 15.10.2018, BCBA/DM/803/2018 dt 14.12.2018, BCBA/DM/810/2018 dt 19.12.2018, BCBA/KR/34:187/2021 dt 22.5.2021

Mr. Dushyant, BCBA requested AIR India to have a meeting with stakeholders so that all issues pertaining to Air India can be discussed and solved. Mr. Kamlesh, Air India agreed to the same and assured that a meeting in this regard would be held soon.

(Point Open)
Action By: Air India

9. Pre-monsoon precaution plan to protect the import and export consignments from rainfalls from ceilings of the custodian and water logging inside the warehouses.

Mr. Bagha, MIAL submitted that as far as per-monsoon preperations are concerned, they had arrested the areas which were notified to them in the last

monsoon for leakages. He further submitted they they also had a team with BMC as well who would look after the flow of water outside the Air cargo.

Mr. Kamlesh, AIR India submitted that they had already escalated this issue to their higher management and they are under process of preparation for per-monsoon.

(Point Closed)

10. The trade is facing difficulties in obtaining the balance amount available in the Licenses like MEIS/SFIS etc. The details are not available on ICEGATE, DGFT website.

BCBA requests you to provide the facilities to get the print of the license debit sheet.

Mr. Sudhakar Pandey, JC(X), it would be discussed with commissioner (X) and be informed in next meeting about the outcome and further course of action

(Point Open)
Action By: Commissioner (X)

11. Any other point with permission of the chair:

Mr. Bala Iyer with the permission of chair submitted that there was a notification of 2014 according to which there was no need to submit negative statement regarding inward remittance.

He further submitted that in 2014, RBI BRC module was introduced according to which banks were responsible for sending message to RBI on receipt of remittance against a SB. He further submitted that banks are not doing their job as a result of which RBI is sending letters to custom stations to issue show cause notices to Exporters for non-submission of negative statement. He further requested if customs could issue any directions to bank.

Commissioner (X) submitted that banks send data to RBI and ultimately RBI sends data to customs system. So, for customs, it's not practically possible to sensitise all banks and their all branches in this regard. Commissioner (X) further informed that it would be more effective if exporters themselves could sensitise their banks in this regard.

(Point Closed)

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

25/5/2022

(Mamta Saini)
Joint Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.